SWINDON
BOROUGH COUNCIL

DELEGATED REPORT

Item Number:
Application Number: S/RES/24/0923

Ward: St Margaret And South Marston
Parish:
South Marston

Proposal: Erection of 134 dwellings and provision of public open space with associated infrastructure and earthworks (layout, scale, appearance and landscaping) - Reserved Matters from previous outline permission S/OUT/13/1555.
Location: 54 Gilbert Place, Lowry Way, Swindon

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Officer Report

Officer's Report

1. **Background**

1.1. Outline planning permission for the land to the north of the A420 (Rowbrough and South Marston) was granted on 11 August 2021 under the reference S/OUT/13/1555. The description of development is as follows:

" Outline Planning Permission, for a sustainable urban extension to the east of Swindon and north of the A420 of up to 2,380 dwellings together with a mixed use local centres/areas (including A1 retail up to 1,500 sq metres, services (A2), restaurants, pubs and takeaways (A3, A4, A5), business uses (B1) up to 1,000 sq metres, residential); community uses (D1); sheltered and/or care accommodation (C2/C3); two primary schools; green infrastructure including formal (including playing fields) and informal open space, landscape, biodiversity and amenity space; play space (including NEAPS/LEAPS/MUGAS); changing and sports facilities (including D2) and ancillary retail uses; sustainable drainage systems; highway, cycle and pedestrian routes; car parking; infrastructure (including utilities); engineering works including ground remodelling; demolition, site reclamation and removal of structures; the formation of new accesses from the A420, Old Vicarage Lane and Thornhill Road."

1.2. The consent permits the development of land north of the A420, which is strategic allocation site under policy RA3 of the Local Plan for South Marston Expansion and Rowborough Village.

1.3. Outline consent required the preparation and approval of design codes and key strategies prior to the submission of Reserved Matters, the following conditions have been fully or partially discharged;

Phasing Details (Condition 6),
Design Codes (Condition7),
Strategic Design Codes (SDC), and Character Area Design Code (CADC) (Conditions 8 and 9, respectively),

as well as the Framework Landscape Ecology and Arboricultural Management Plan (FLEAMP) (Condition 10).

1.4. This application seeks to approve Reserved Matters (access, appearance, layout, scale and landscaping) for dwellings and associated infrastructure.

1.5. The application site comprises parcels R8 and R9 within the proposed South Marston Extension. The parcels comprise land predominantly to the west but also to the east of Old Vicarage Lane, lying to the south of the village of South Marston. The land is currently laid to pasture and is bound by mature field boundaries in the form of mixed species hedgerows.

2. Summary of Recommendation

2.1. That the approval of the Reserved Matters be GRANTED subject to planning Conditions

3. The Proposal

3.1. The proposal consists of the development of two parcels of land located on either side of Old Vicarage Lane abutting existing residential areas of South Marston. The Parcel to the southwest of Old Vicarage Lane can be accessed from the Primary Street (which is subject to a separate application for Reserved Matters Approval), but both parcels can also be accessed from Old Vicarage Lane.

3.2. The development proposes the delivery of 134 new homes. The southwestern parcel accommodates 81 dwellings and the north eastern 53.

3.3. The Table below outlines the mix of accommodation proposed – both open market and affordable homes (Affordable Rent and Shared Ownership):

WOODLANDS, SKYLARK(R8 & R9), LAND NORTH OF A420, SWINDON							134
REF	CODE	ACCOMODATION	HEIGHT	STRUCTURAL (GROSS) SQ.FT	STRUCTURAL (GROSS) SQ.M	NO	SQ.FT. TOT. (GROSS)
MARKET						77%	
2 BED						9%	
EMA23	EMA23	2B4P	2.0	881	81.80	9	7927
3 BED						50%	
EMA33	EMA33	3B4P	2.0	989	91.90	29	28690
EMT31	EMT31	3B5P	2.0	1077	100.08	15	16160
EMT32	EMT32	3B5P	2.0	1077	100.08	6	6464
EMG31	EMG31	3B5P	2.0	1176	109.20	2	2351
4 BED						41%	
EMA43	EMA43	4B5P	2.0	1273	118.20	20	25452
EMT41	EMT41	4B6P	2.0	1273	118.20	11	13999
EMA47	EMA47	4B7P	2.0	1473	136.80	5	7365
EMT45	EMT45	4B7P	2.0	1469	136.47	2	2938
EMA49	EMA49	4B6P	2.0	1678	155.90	4	6711
SUB TOTAL						103	118056
AFFORDABLE						23%	
BLOCK A	/	1B2P	2.5	557	51.80	1	557
	/	1B2P	2.5	563	52.30	1	563
	/	1B2P	2.5	576	53.50	2	1152
	/	1B2P	2.5	590	54.80	2	1180
EMAP22	EMAP22	2B4P	2.0	870	80.80	14	12179
EMAP32	EMAP32	3B5P	2.0	1033	95.90	8	8261
EMAW31	EMAW31	3B5P	2.0	1287	119.60	2	2575
EMAP41	EMAP41	4B6P	2.0	1186	110.20	1	1186
SUB TOTAL						31	27653
GRAND TOTAL						134	145709

3.4. The proposed development would comprise 103 open market dwellings (76.9%) and 31 affordable dwellings (23.1%) across the parcels, in accordance with the requirement set out in Schedule 3, para. 1.1 of the S106 agreement that requires future reserved matters to provide between 20% and 26% affordable housing within any sub-phase of development (defined in the S106 agreement as a single residential reserved matters submission).

3.5. The affordable homes are designed and arranged in 3 clusters that meet the requirements of the S106 agreement, which states that affordable housing units should be tenure blind and in clusters of up to 15 units, of which no more than 11 should be for affordable rent. None of the clusters exceeds 15 dwellings in total and none include more than 10 affordable rented units.

3.6. The affordable units are designed to be indistinguishable from the market Dwellings. The dwellings have levels of external amenity space, privacy, and car parking that are commensurate with the equivalent market dwellings (by size and type) and are constructed from a palette of materials that is consistent with the type and quality used for the private dwellings.

3.7. The layout includes the provision of the following accessible units:

- M4(2) – All plots are M4(2) compliant internally
- M4 (3) – Plots 108-109

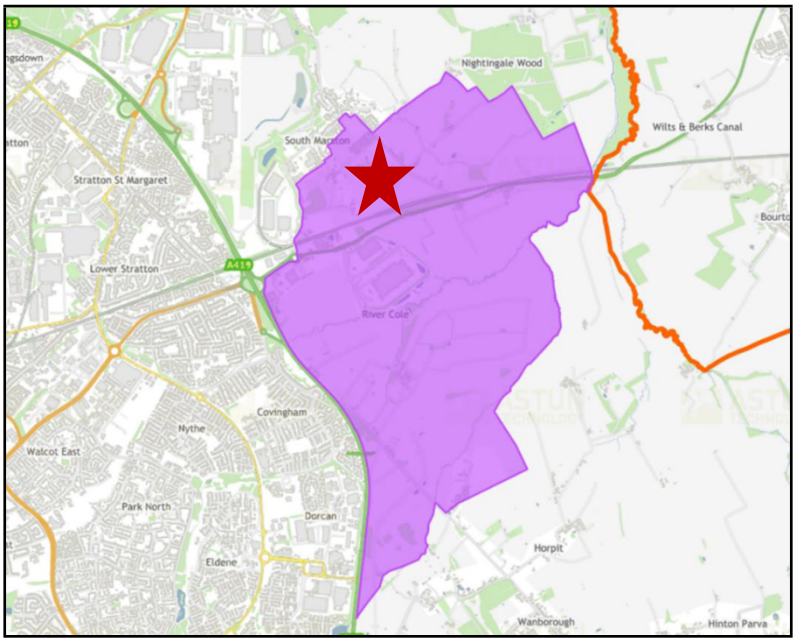
The Site

3.8. The application site is comprised of an agricultural field parcel, extending to circa 4.71 hectares, located on the eastern edge of Swindon, close to South Marston. The site is situated to the east and west of Old Vicarage - Lane, within the St. Margaret and South Marston Ward.

3.9. There are three proposed vehicle access points into the site, two off of Old Vicarage Lane and a third off of the new primary street running south of the village of South Marston. The site is bound as follows:

• To the north of the site is Magdalene Close, comprising residential development
as approved under application reference: S/18/0711 which has now been completed. Beyond this is South Marston Recreation Ground. To the north east
is existing residential development at Church Ground north of Nightingale Lane.
• The land to the south of the site is greenfield, however this area forms part of
the wider New Eastern Villages urban extension as approved under outline application reference S/OUT/13/1555. The illustrative masterplan identifies this
area as delivering allotments, green space and a LEAP.
• The land to the east of the application site is greenfield, also forming part of the
urban extension referenced above. The illustrative masterplan under the outline
application identifies this area for green space and a new footpath / cycleway.
• The land to the west is comprised of agricultural fields, with a cluster of agricultural buildings. Further to the west is land comprising a mix of residential
and employment uses.

3.10. The site and wider area comprises the New Eastern Villages site allocation (Policy NC3) as identified in the Swindon Borough Local Plan (2026). Figure 1 below shows the Council's adopted policies map, identifying the site allocation for Policy



NC3, with the approximate location of the application site identified in red

4. Planning History

S/OUT/13/1555 – Outline Planning Permission, for a sustainable urban extension to the east of Swindon and north of the A420 of up to 2,380 dwellings together with a mixed use local centres/areas (including A1 retail up to 1,500 sq metres, services (A2), restaurants, pubs and takeaways (A3, A4, A5), business uses (B1) up to 1,000 sq metres, residential); community uses (D1); sheltered and/or care accommodation (C2/C3); two primary schools; green infrastructure including formal (including playing fields) and informal open space, landscape, biodiversity and amenity space; play space (including NEAPS/LEAPS/MUGAS); changing and sports facilities (including D2) and
ancillary retail uses; sustainable drainage systems; highway, cycle and pedestrian routes; car parking; infrastructure (including utilities); engineering works including ground remodelling; demolition, site reclamation and removal of structures; the formation of new accesses from the A420, Old Vicarage Lane and Thornhill Road.

– Application Granted

Various Applications to Discharge Conditions / obligations and to agree Non Material Amendments have also been submitted. None, other than those described above, are material to this application.

5. Representations

Representations are summarised below. Full text of al representations is available on Public Access.

South Marston Parish Council:

19 September 2024

Raise concerns regarding wider application submission strategy matters and concerns regarding accessibility as approved in previous submissions and regarding ensuring the joined-up delivery of the project overall.
Specific comments are made regarding utilities delivery, site levels and sections, visitor / ad hoc parking provision, ped / cycle accessibility and accommodating desire lines as well as around ongoing management and maintenance of landscape / green infrastructure.

November 2024

Raise concerns regarding:
Green Infrastructure Management
Prevention of flooding on the bridleway
Parking
Carpenters Walk
And
No safe cycle route to the A420.

Jan 2025

The Parish Council has some remaining concerns but believes these will be resolved in other Reserved Matters consultations.

Cllr Vallender: (November 2024)
Supports the views of SMPC

Dorset & Wiltshire Fire and Rescue

Provide commentary regarding building fire safety / building regulations matters

Swindon Highways
30 August 2024
Content that the access proposals largely reflect the requirements within the Strategic Design code and the Character Area Design Code. Raises concerns regarding access for refuse vehicles, designing for pedestrian priority, visitor parking. Identifies that adequate cycle parking is required, requests travel plan contribution
21 November 2024

Secondary footpath to Rowborough needs to show connection to boundary.

Other site access concerns resolved.

Refuse vehicle access concerns resolved
Pedestrian Access outside plots 53 & 54 remains a concern.

Parking numbers acceptable, distribution remains a cause for concern, but not objection.

Jan 2025

Landscape

Initial comments
Provides detailed comments regarding areas for improvement in both planting mixes, locations and Management / maintenance arrangements

21 November 2024:

I am grateful to the applicant for amending the scheme to address my previous comments. I have reviewed the following documents and have no further comment to make

Housing

Requested additional detail regarding unit sizes
Subsequently: I am happy with the information provided, and have no further comments to add, at this stage.

Arboricultural Officer

Raise a number of concerns regarding drawing consistency and seeking an improved tree planting mix

LLFA

Request same information as per on same site PA number S-RES-24-1020
• Drainage strategy Summary.
• Maintenance section
• Water quality
• Drawings drainage strategy: Manholes/Pipes/basins/Swales including references and complete drainage information (sizes/falls/materials)
• Calculations up to Q100cc discharge rates / flood volume / exceedance

Ecologist

The **LEAMP** (fpcr, August 2024 FINAL) highlights under Section 2 **"Ecological Receptors"** for Birds, Reptiles, GCN and Bats a statement *"….will result in additional enhancements for local amphibian populations…will provide birds with new foraging and nesting opportunities… will provide birds new foraging and opportunities for a range of bats species….* It concludes with the Summary **Paragraph/Section 2.5** *Post development green infrastructure will provide enhancements to a range of species.*
Also, the **Design & Access Statement, *P 40 Resources and Sustainability Landscape Strategy***, it states that; *Ecological enhancements to include log piles or hibernacula located on the margins of grassland and scrub, bird and bat boxes positioned on existing mature trees to the site boundaries; and a bug hotel will also be created within the public open space.*
However, further specific detail is required (i.e. been omitted) in relation to the above by way of number of bat and bird boxes (bar Swift boxes that has been addressed), their type, (including proposed target species) and (tree) locations and orientations. What, if any, are the specific additional enhancements in relation to amphibians and reptiles? The LEAMP should be updated to address the above.
4.5 Landscape Measures states *"…After construction, the Green Infrastructure will be handed over to a Management Company or other appropriate body…"* I would like to see a commitment statement that any management company utilises the expertise of a Suitably Qualified Ecologist (SQE) for the site long-term, in order to help deliver, maintain and monitor the ecological receptors and wider ecological and landscape proposals as set out in the LEAMP and FLEAMP (agreed and part of /COND/22/0316). Again, the LEAMP should be revised to address the above.

Public Comments / Representations

Three representations have been received from Members of the Public.

Ramblers Swindon & North East Wiltshire Group note the Bridleway to the North West of the site is in poor condition and should be improved as part of this application.

A Local resident considers the application should be rejected until the relevant infrastructure is in place – noting that the proposed homes will be able to be accessed from Old Vicarage Lane contrary to assertions that road infrastructure to serve the development would be put in place.

North Wiltshire Swifts Seeks confirmation that the FLEAMP Ref 1796 Rev5 of S/COND/22/0316 covers this Reserved Matters application, and if not then a further condition for integrated bricks at a ratio of 1 per dwelling should be applied. All locations should be marked on site drawings and elevations and photographic evidence or consultant ecologist report of installation provided to discharge.

6. Relevant Planning Policy and Guidance

6.1. Section 38 (6) of the Planning and Compulsory Purchase Act 2004 requires applications for planning permission to be determined in accordance with the development plan unless material considerations indicate otherwise. Section 70 (2) of the Town and Country Planning Act 1990 provides that the Local Planning Authority (LPA) shall have regard to the provisions of the development plan, so far as material to the application and to any other material considerations. National Planning Policy Framework (NPPF) reiterates the pre-eminence of the local plan as the starting point for decision-making.

6.2. The NPPF is a material consideration in any assessment. It is clear that the presumption in favour of sustainable development does not change the statutory status of the development plan as the starting point for decision-making. Therefore, development coming forward must be determined in accordance with the local development plan, which in this case comprises the Swindon Local Plan 2026 ('the Local Plan).

6.3. The planning policy context and key planning considerations relating to the proposal are set out below.

Policy Context

National Planning Policy Framework (2024)

6.4. The National Planning Policy Framework (‘NPPF’) details the national planning policies for England. The planning system performs three roles in achieving sustainable development, namely the economic, social and environmental. The NPPF states that these roles are mutually dependant and that to achieve sustainable development, economic, social and environmental

gains should be sought jointly and simultaneously through the planning system.

Swindon Borough Local Plan 2026 (2015)

6.5. The Swindon Borough Local Plan 2026 ('Local Plan') was adopted by Swindon Borough Council ('The Council') on 26th March 2015 and forms part of the Development Plan for Swindon.

6.6. Within this, Policy NC3: New Eastern Villages – including Rowborough and South Marston Village Expansion allocates the land for development as part of one of the new communities allocated within the Local Plan. The reserved matters submission lies within the South Marston component, which is identified for 500 dwellings (of the 2,000 dwellings located to the north of the A420).

6.7. The following policies are relevant to the reserved matters submission:

- DE1 – High Quality Design
- DE2 – Sustainable Construction
- HA1 – Housing – Mix, Types, and Density
- HA2 – Affordable Housing
- HA3 – Wheelchair Accessible Housing
- TR2 – Transport and Development
- IN4 – Low Carbon and Renewable Energy
- EN1 – Green Infrastructure Network
- EN3 – Open Space
- EN4 – Biodiversity and Geodiversity
- EN6 – Flood Risk
- EN7 Pollution
- EN6 Flood Risk
-

South Marston Neighbourhood Plan (SMNP)

6.8. The South Marston neighbourhood plan was adopted at a full council meeting on 9 November 2017. It forms part of the borough's statutory development plan.

6.9. The relevant policies of the SMNP for this proposal include the following:

- NP Policy 1 – Integrated Development
- NP Policy 2 – Design
- NP Policy 5 – Access to The A420
- NP Policy 8 – Cycleways And Footpaths

Other guidance

- Development Control Guidance Note Technical Guidance on Parking Standards (2021)
- *Wiltshire and Swindon Waste Core Strategy (2009)*

The adopted Wiltshire and Swindon Waste Core Strategy Policy WCS6 'Waste Reduction and Auditing' applies to all major developments.

- *Community Infrastructure Levy Charging Schedule (2015)*

6.10. Swindon Borough Council adopted the Community Infrastructure Levy (CIL) Charging Schedule in March 2015, effective April 6th, 2015. The application is located within Residential Zone 1 (Swindon's New Communities), which has a £0 CIL charging rate instead relying on S106 due to the strategic nature of the development.

7. Principle of the Development

7.1. Paragraph 14 of the NPPF states that at the heart of the National Planning Policy Framework is a presumption in favour of sustainable development, which should be seen as a golden thread running through both plan-making and decision-taking.

7.2. The outline permission addresses the strategic policies of the plan. The principle of development is acceptable by virtue of the outline planning consent and
compliance with the approved Section 106 Agreement, conformity with discharged conditions and other policies of the Swindon Local Plan.

7.3. The consideration of reserved matters applications accords with Article 2 of the Town and Country Planning (Development Management Procedure) (England) Order 2015 ("DMPO"), which is limited to access, appearance, landscaping, layout, and scale.

Access, Parking and the Impact on the Highway Network

7.4. 8.4 Policies TR1 and TR2 of the Local Plan seek to ensure access for developments that is appropriate to the scale, type and location of the proposal without detriment to highway safety, traffic movement and the local environment. They also seek to reduce the need to travel and support and encourage sustainable, safe and efficient movements throughout the Borough.

7.5. The Parking Standards for New Development (February 2021) sets out the parking requirements for development.

7.6. The Local Highway Authority (LHA) was consulted on the application and reviewed the submitted information to assess the adequacy of the proposed site access arrangements and the safety and effectiveness of the internal layout.

7.7. The revised highway layout ensures appropriate visibility. The submitted information indicates that the land required for visibility forms part of the public highway and that appropriate planting should be below 600mm in height to preserve adequate visibility. The proposed development would accord with Note 5, which states that land for visibility must be safeguarded, adopted, and maintained as a public highway as part of the S278/S38 agreement.

7.8. The highway layout also shows visibility commensurate to the speed limit along Old Vicarage Lane.

7.9. Following various revisions, the LHA advises that there is no objection to the proposal.

Appearance/Layout/Scale

7.10. Conditions attached to the outline planning permission (S/OUT/13/1555) required that design codes and strategies be prepared and approved before submitting Reserved Matters. The following conditions have been fully or partially discharged and inform these Reserved Matters:

- Condition 6 – Phasing Details
- Condition 7 – Design Codes
- Condition 8 – Strategic Design Codes (SDC)
- Condition 9 – Character Area Design Code (CADC)
- Condition 10 – Framework Landscape Ecology and Arboricultural Management Plan (FLEAMP)

Strategic Design Code ('SDC') (ref. S/COND/22/0031)

7.11. The SDC was approved by SBC on the 1st May 2024. The document was produced to inform the development of South Marston Expansion and Rowborough Village, which both form part of the New Eastern Villages Site Allocation (Policy NC3).

7.12. The SDC identifies three character areas where built development is proposed, these are as follows:

- South Marston
- Fairthorne and Thornhill
- Marston Gate and Nightingale Corner (to which this application relates).

7.13. Key design principles for the areas within the Marston Gate and Nightingale Corner Character Area include:

- helping to define the appearance of the village expansion area from Old Vicarage Lane. … deliver a sensitive, contextual response to the existing eastern edge of South Marston.
- The primary street will run through the character area providing access and a structuring element which development will front onto.
- A gateway design … at the new access point on Old Vicarage Lane.
- Dwellings that front Old Vicarage Lane will have direct access from Old Vicarage Lane, seeking to minimise hedgerow removal, either via individual driveways or private driveways to groups of dwellings.
- Houses reflecting the existing character of development along Old Vicarage Lane will be appropriate within this area with opportunities for higher densities within residential blocks and lower densities addressing the open space.
- Pedestrian and cycle route, together with bridleways, will provide connections to the wider development and green infrastructure.

- Play area and community orchard, as part of wider landscape framework, will be accommodated within the heart of this area.
- Pedestrian and cycle permeability to be allowed across the boundary along the bridleway to the north, to offer access to Vicarage Gardens.

Character Area Design Code ('CADC') (Marston Gate and Nightingale Corner) (ref. S/COND/22/0315)

7.14. The CADC for Marston Gate and Nightingale Corner was approved by SBC on the 12th July 2024. This builds on the detail approved in the Strategic Design Code.

7.15. The CADC identified the following character areas within the application site:

- Old Vicarage Lane
- Primary Street
- Parkland Edge.

7.16. The following design principles are set out in the approved CADC and have been included as part of the submitted layout for this reserved matters application:

- All modes access to be provided from Old Vicarage Lane and from Primary Street.
- Existing bridleway along The Leaze to be retained and enhanced / resurfaced.
- Key space is identified at the centre of the Character Area, highlighting importance of the central green space which consist of play and community orchard, forming a green heart where residents can gather and enjoy.
- Dwellings that front Old Vicarage Lane will have direct access from Old Vicarage Lane, seeking to minimise hedgerow removal, either via individual driveways or private driveways to groups of dwellings.
- A well-connected network of pedestrian and cycle routes to be established linking residential parcels to open space.
- Surface water run-off to be collected in drainage basins located within the open space along the development parcel boundaries.

Scale & Density

7.17. The proposed average density for the site is 33.4 dwellings per hectare (dph). Buildings are largely 2 storey, with single storey garages and some key buildings being slightly taller. This is considered appropriate for the Character Areas.

Appearance

7.18. The appearance of the scheme builds upon the principles established within the Strategic Design Code and the Character Area Design Code. The proposed dwellings include a mixture of short terraced, semi-detached and detached housing with limited use of flat blocks to create a key building and deliver density.

7.19. The materials palette for the identified character areas within the site are as follows:

Old Vicarage Lane	**Primary Street**	**Parkland Edge**
Red Multi Brick	Red Multi Brick	Buff Multi Brick
Roughcast Render	Buff Multi Brick	Dark Grey Cladding

Red Roof Tiles Grey Roof Tiles	Grey Roof Tiles	Grey Roof Tiles

7.20. The Built form represents in general traditional lower-scale development, and materials, building arrangement, and scale combine to achieve compliant
frontages, elevational styles, and dwelling types suitable for the South Marston
and Nightingale Corner Character Area.

7.21. The largest homes and blocks of flats are situated in locations key focal buildings, such as prominent corners that enhance views and landscapes. These larger buildings feature additional architectural details.

7.22. The palette of materials is acceptable in principal but will require further submissions.

7.23. Overall, the housetypes, scale and appearance of the properties are considered acceptable.

7.24. The built form largely follows a block structure with most plots having on-plot parking. There is a parking court that serves the flats, whose 2 way outlook will support passive overlooking for this space. Otherwise the layout is generally unremarkable but acceptable. The use of gable fronted and "ridge" fronted, as well as gable adornments to elevations ensures a level of variety and interest in the facades and care has been taken to consider corner properties and termini to views.

Landscape

7.25. Following considerable debate and amendments to the plans, the landscaping scheme is now considered acceptable by the Placemaking team. Important trees are retained around the site and tree planting within the site is largely in the public domain – leading to likely improved longevity. Trees include Hornbeam Rowan, Hazel etc.

7.26. The retention and reinforcement of hedges on Old Vicarage Lane – along with mature trees – will be an important part of the assimilation of this new part of the community and the proposed tree planting programme will support this. The framework for delivery is largely set through the outline planning permission underneath which this sits – with conditions and the S106 Obligation setting / requesting parameters.

7.27. The residential layout allocates space for trees to enhance views, serve as gateway features, and soften buildings, parking bays, and boundaries.

7.28. The site is largely flat, meaning there is no need for substantial retaining structures and that rear boundary treatments will largely be screened by homes.

7.29. There are however areas of rear parking courts as well as around parking spaces where the plans currently propose close boarded fencing. This is not acceptable and a condition is proposed to require these to be bounded by brick wall features.

7.30. The fencing detail included on the boundary details plan does not consider the provision of hedgehog holes, and should. It is important that approved documents associated with this application do not conflict with the requirements of the FLEAMP or other approved material.

7.31. A LEAP and area of Allotments /Community Orchard are proposed to provided to the south of the development, delivery of these is controlled by the S106 Agreement for the wider site.

Ecology

7.32. The application was reviewed by the Senior ecologist, who considered that the Landscape, Ecology, and Arboricultural Management Plan is lacking in sufficient detail. The documentation refers back to that submitted under conditions on the Outline Planning Permission which, it is agreed, will take precedence. The submitted LEAMP is therefore not an approved document as part of this Reserved Matters application.

7.33. Condition 11 of S/OUT/13/1555 is in place and will need to be discharged
before development can start on this parcel. Condition 11 says “No development on each sub-phase shall commence until the LEAMP for that sub-phase has been approved in writing by the Local Planning Authority.”

7.34. Documentation to discharge Condition 11 in relation to this phase will also need to provide “A detailed 30-year biodiversity management plan (LEAMP), based on the detailed framework management principles set out above including details of the roles, responsibilities and management mechanism to be put in place.” (para 6.3 of Framework Landscape, Ecology And Arboricultural Management Plan (FLEAMP), FPCR, November 2023.) The FLEAMP is under S/COND/22/0316 (Discharge of condition 10 (Framework, Landscape, Ecology & Arboricultural Management Plan) from previous permission S/OUT/13/1555. Land North Of A420 Eastern Villages Swindon).

7.35. The application does include proposals for landscape implementation and for some limited biodiversity enhancements – which are proposed to be controlled by conditions attached to this approval – but it is not considered that the conditions of the planning permission have yet been met.

Lead Local Flood Authority

7.36. The LLFA was consulted on this planning application advising on 19/09/24 that they have no objections subject to compliance with the

conditions imposed on the outline permission relevant to this phase of the development.

7.37. Drainage details sufficient to demonstrate that parcels R8 and R9 can be
drained in accordance with the discharge rates of the approved drainage strategy are provided. The RM submission includes a drainage design that will
achieve the requirements of the approved strategy.

7.38. Further details regarding the final design and implementation of the drainage for this part of the site will need to be provided through discharging Condition 42 of the Outline Planning Permission. I am therefore satisfied that adequate information has been provided at this stage.

7.39. The applicant's drainage engineers are preparing a submission to discharge the requirements of condition 42 fully as a separate application. The design of the scheme will not affect the reserved matters that are subject to this application (layout/scale/appearance/landscaping).

7.40. The LPA will retain full control over matters relating to drainage of the site
following approval of this RM application and will not be compromised in respect of achieving a workable and satisfactory drainage solution for parcels R8 and R9.

8. Conclusion

9.1 The application is considered to be in general accordance with the outline permission S/OUT/13/1555 and the provisions of Phasing Details (Condition 6),
Design Codes (Condition 7), Strategic Design Codes (SDC) and Character Area Design Code (CADC) (Conditions 8 and 9, respectively), as well as the Framework Landscape Ecology and Arboricultural Management Plan (FLEAMP) (Condition 10). The proposed development would accord with the relevant local plan policies and the NPPF. As such, it is considered that these Reserved Matters should be approved.

9. Recommendation

10.1 That Reserved Matters Approval be **GRANTED** subject to conditions

Conditions

Plans

1. This approval shall be in respect of the following plans submitted to the Local Planning Authority:

Plan and reference	**Reference**
Site Location Plan	CB_86_263_R8-R9_000 Rev A
Planning Layout	CB_86_263_R8-R9_001 Rev H

Land Use Plan	CB_86_263_R8-R9_002 Rev C
Housing Mix Plan	CB_86_263_R8-R9_003 Rev C
Affordable Housing Plan	CB_86_263_R8-R9_004 Rev D
Building Heights Plan	CB_86_263_R8-R9_005 Rev C
Parking Plan	CB_86_263_R8-R9_006 Rev C
Bin and Cycle Store	CB_86_263_R8-R9_007 Rev C
External Finishes Plan	CB_86_263_R8-R9_008 Rev C
External Enclosures Plan	CB_86_263_R8-R9_009 Rev C
Character Area Plan	CB_86_263_R8-R9_012 Rev C
Core Area Housetypes	CB_86_263_R8-R9 Rev A
Garages and Stores	CB_86_263_R8-R9 Rev A
Old Vicarage Lane Housetypes	CB_86_263_R8-R9 Rev A
Parklands Edge Housetypes	CB_86_263_R8-R9 Rev A
Primary Street Housetypes	CB_86_263_R8-R9 Rev A
Streetscene	CB_86_263_R8-R9_CA_SS_01 Rev B
Streetscene	CB_86_263_R8-R9_OVL_SS_01 Rev B
Streetscene	CB_86_263_R8-R9_PE_SS_01 Rev B
General Arrangement	CB_L_86_263_R8-R9_1300_General Arrangement Rev E
Planting Plan	CB_L_86_263_R8-R9_1500 Rev F
Planting Plan	CB_L_86_263_R8-R9_1501 Rev F
Planting Plan	CB_L_86_263_R8-R9_1502 Rev F
Planting Plan	CB_L_86_263_R8-R9_1503 Rev F
Planting Plan	CB_L_86_263_R8-R9_1504 Rev F
Planting Plan	CB_L_86_263_R8-R9_1505 Rev F
Planting Plan	CB_L_86_263_R8-R9_1506 Rev F
Hard Landscape Plan	CB_L_86_263_R8-R9_1600 Rev E
Hard Landscape Plan	CB_L_86_263_R8-R9_1601 Rev E
Hard Landscape	CB_L_86_263_R8-R9_1602 Rev E
Hard Landscape	CB_L_86_263_R8-R9_1603 Rev E
Hard Landscape	CB_L_86_263_R8-R9_1604 Rev E
Hard Landscape	CB_L_86_263_R8-R9_1605 Rev E
Hard Landscape	CB_L_86_263_R8-R9_1606 Rev E
Kerb Plan	17-05 Rev C
EV Plan	26-01 Rev A
Road Geometry	20-01 Rev E
Section 38	38-01 Rev E
Old Vicarage Lane	52-01 Rev B
Bridleway-X-sections	53-01 Rev B
Refuse Track	103-01 Rev E
Planning-Slab-Levels	106-01 Rev C
Drainage Strategy	101-01 Rev D
Engineering-Layout	20933 06-09 Rev C

Reason: To define the scope of the development hereby permitted in accordance with section 72 of the Town and Country Planning Act 1990.

Materials

2. Notwithstanding the submitted plans, prior to any works above slab level in connection with the development hereby permitted, details and samples of all external facing materials in broad accordance with PL-04 E Materials Plan (including facing materials, roof tiles, window, door, balcony and canopy casements and rainwater
goods) and boundary treatments shall have first been submitted to and approved in writing by the Local Planning Authority. For the avoidance of doubt, the form and disposition of boundary treatments at the site is specifically excluded from this approval at this time. The development hereby permitted shall be carried out in accordance with these approved details.

Reason: To ensure that the appearance of the development is satisfactory.

Hard Landscaping Details

3. Notwithstanding the submitted plans, prior to works above slab level in connection with the development hereby permitted, details and samples of all surface materials including roads, footways, footpaths, hazard paving, route finding markers, and parking spaces surfacing) shall have first been submitted to and approved in writing by the Local Planning Authority. These details shall clearly identify how visitor parking spaces will be labelled and how signage clearly identifies the private and public parking areas. The development hereby permitted shall be carried out in accordance with these approved details.

Reason: To ensure that the appearance of the development is satisfactory.

Landscape and Public Realm

4. All hard and/or soft landscape works shall be carried out in accordance with the approved details. The works shall be carried out prior to the occupation of any part of the development or in accordance with the programme (phasing) agreed in writing with the Local Planning Authority.

Any trees or plants indicated on the approved scheme which, within a period of five years from the date of the development being completed, die, are removed or become seriously damaged or diseased shall be replaced during the next planting season with other trees or plants of a species and size to be first approved in writing by the Local Planning Authority.

All retained trees and hedges are to be protected and maintained in accordance with FPCR arboricultural method statement (dated December 2024) and associated tree protection plans (FPCR Tree Retention Plan (1796-T-53) Tree Protection Plan (1796-T-054, 1796-T-55) prior to works and development commencing at the site.

Reason: To ensure that the landscape scheme is implemented and maintained in accordance with the SBC Local Plan.

Ecological Enhancement Features

5. Notwithstanding the submitted plans, prior to any works above slab level in connection with the development hereby final details of the type, number and location of bird & bat boxes, bat tubes, hedgehog highways and other ecological enhancement features shall be submitted to the Local Planning Authority and approved in writing. The mitigation features shall then be installed in accordance with the agreed details.

Reason: In the interest of biodiversity protection and enhancement.

Footpath and Bridleway Links

6. Prior to first occupation of any dwelling hereby approved, specifications for and a timetable for the installation of footpath links to the boundaries of the site and for the delivery of enhancement works to the Bridleway at the north of the site shall be submitted to and approved in writing by the Local Planning Authority. The timetable shall include that the works shall be completed prior to occupation of the 100th Open Market dwelling to be provided on site.

Reason: In the interests of delivering an integrated and accessible development by all modes of transport.

Plant/Heat Pumps

7. Prior to the occupation of any dwelling (which contains external plant or heat pump), details including the location and appearance for any external plant or heat pumps shall be submitted to and approved in writing by the Local Planning Authority. The development hereby permitted shall be carried out in accordance with these approved details.

Reason: To ensure that the appearance of the development is satisfactory.

Case officer: Ros Eastman	
Date: 27th January 2025	

Authorising Officer:	Edward Snook
Date Authorised:	29th January 2025